



Republic of the Philippines
DEPARTMENT OF LABOR AND EMPLOYMENT
Intramuros, Manila



DEPARTMENT ORDER NO. 235
Series of 2022

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**RULES ON THE CERTIFICATION OF FIRST AIDERS
AND THE ACCREDITATION OF FIRST AID TRAINING PROVIDERS**

Pursuant to Section 25 of Republic Act No. 11058 entitled "An Act Strengthening Compliance with Occupational Safety and Health Standards and Providing Penalties for Violations Thereof" and Department Order No 198, Series of 2018 (DO 198-18) or its Implementing Rules and Regulations, the following rules are hereby issued:

Rule I
General Provisions

Section 1. Coverage. – This Rules shall apply to the certification of first aiders and the accreditation of First Aid Training Providers.

Section 2. Definition of terms. – As used herein, the following terms shall mean:

- a. **Accredited Technical-Vocational Education and Training (TVET) Institution (TVI)** refers to a public or private institution duly recognized and authorized by Technical Education and Skills Development Authority (TESDA) to implement the Dualized Training System/Dualized Training Program together with a partner establishment;¹
- b. **Certificate of Accreditation** refers to the certificate issued by the Department of Labor and Employment (DOLE) to a first aid training provider after satisfactorily passing the accreditation process and evaluation standards;
- c. **Certified First Aider** refers to any person trained and certified to administer first aid by the Philippine Red Cross, Department of Health, Bureau of Fire Protection, TESDA, and other DOLE-accredited first aid training providers;
- d. **DOLE-Accredited First Aid Training Provider (FATPro)** refers to a training organization in the private sector authorized by the Secretary of DOLE to provide first aid training to individuals to become a certified first aider based on the requirements of this Rules;
- e. **Dualized Training Program (DTP)** refers to a TVET program that combines in-plant and in-school training based on a training plan collaboratively designed and implemented by a TVI and its partner establishment that have Dual Training System Accreditation. The duration of the in-school and in-plant training under this system shall not be more than the duration of the registered program of the TVI. The program meets all the requirements provided for under the Dual Training

¹ As defined in III(a) of TESDA Circular No. 3, Series of 2012

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System Law, except for the prescribed payment of the training allowance to the student/trainee;²

- f. **Dual Training System (DTS)** refers to an instructional delivery system of technical, vocational education and training that combines in-plant and in-school training based on a training plan collaboratively designed and implemented by an accredited dual system educational institution/training center and accredited dual system participating establishments. The duration of the in-school and in-plant training under this system shall not be more than the duration of the registered program of the TVI;³
- g. **Emergency First Aid Training** refers to a one-day training course where participants are provided with knowledge on day-to-day emergencies that ordinary people may encounter until full medical treatment is available;
- h. **First Aid Training** refers to training course on first aid and basic life support at work with the necessary skills and training competencies as prescribed by DOLE;
- i. **Manual of Procedures (MOP)** refers to the document issued by DOLE consisting of the administrative and procedural guidelines on Certification of First Aiders and the Accreditation of FATPro;
- j. **Occupational First Aid and Basic Life Support Training** refers to a two-day training course where participants are provided with knowledge and skills to establish, maintain, and facilitate the provision of effective life support in a workplace environment until full medical treatment is available;
- k. **Standard First Aid and Basic Life Support Training** refers to a four-day training course covering all aspects of first aid and cardio-pulmonary resuscitation for infants, children, and adults in various situations until full medical treatment is available;
- l. **Technical-Vocational Education and Training (TVET)** refers to a comprehensive term that includes all educational and training processes concerned with the study of technologies and related sciences and directed toward the acquisition of occupational competencies that are essential for gainful participation in economic and social activities.⁴

Rule II **Certification of First Aiders**

Section 1. Authorized FATPros for First Aid Training Certification. – First aid certification training course for designated first aider in workplaces shall only be given by the following organizations:

- a. Philippine Red Cross (PRC);

² As defined in III(k) of TESDA Circular No. 3, Series of 2012

³ As defined in III(l) of TESDA Circular No. 3, Series of 2012

⁴ As defined in III(r) of TESDA Circular No. 3, Series of 2012

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- b. Department of Health (DOH);
- c. Bureau of Fire Protection (BFP);
- d. DOLE-accredited TVIs with TESDA-registered Emergency Medical Service National Certification (EMS NC) programs; and
- e. Other DOLE-accredited first aid training providers.

Section 2. Types of First Aid Certification Training Courses. – The designated first aider shall take the minimum certification training course based on the establishment's employment size and risk level, as shown below:

Training Courses	Employment Size	Risk Level
Emergency First Aid Training	Nine (9) and below	Low, Medium, and High
Occupational First Aid and Basic Life Support Training	Ten (10) to Fifty (50)	Low
Standard First Aid and Basic Life Support Training	Ten (10) to Fifty (50)	Medium and High
	Fifty-one (51) and above	Low, Medium, and High

Section 3. Validity of First Aid Certification. – All first aid certificates shall be valid for three (3) years from the date of its issuance.

Section 4. Designation as First Aider vis-a-vis the EMS NC Program. – An individual holding a certificate of completion of EMS NC Program may be designated as first aider by an establishment, regardless of employment size and risk level, provided that:

- a. The EMS NC Certificate of the holder is valid;
- b. The EMS NC Program of the TVI is a TESDA-registered program;
- c. The TVI directly conducted the EMS NC Program ;
- d. The TVI that conducted the EMS NC Program is a DOLE-accredited FATPro; and
- e. The holder must pass the knowledge and skills assessment of a FATPro if he/she fails to take the said assessment with a TVI.

Section 5. Renewal of the Certification. – The application for renewal of certification may be applied by completing the modules on the renewal training course that focus on the core competence that the first aider needs based on the certificate being renewed. It shall be filed within sixty (60) days prior to the expiration of the certificate being renewed. The cost of the same shall be shouldered by the employer pursuant to Section 16(b) of DO 198-18.

The following are the requirements for renewal:

- a. Valid Emergency, Occupational, or Standard First Aid and Basic Life Support Certificate and identification card; and
- b. Satisfactorily passed the skills and knowledge assessment administered by the FATPro.

Rule III **Accreditation of First Aid Training Providers**

Section 1. Accreditation Requirements of First Aid Training Providers. – Training providers under Section 3 (d) and (e) seeking accreditation as FATPro shall submit the following to DOLE:

- a. A duly accomplished application form
- b. Documents as required in the MOP
- c. Training curriculum with corresponding training hours, facilitator's and participant's manual on emergency, occupational, and standard first aid with BLS as prescribed by the DOLE
- d. Baseline application of first aid training provider shall be the four-day Standard First Aid Training Course with Basic Life Support (Cardiopulmonary Resuscitation and Automated External Defibrillator operation)

For TVI with a TESDA-registered EMS NC program, a Valid Certificate of Program Registration for EMS NC from TESDA shall be required.

Section 2. Modes of Submission. – The FATPro may submit the accreditation requirements through the following means:

- a. Personal;
- b. Registered mail, including private courier service; or
- c. Electronic mail at the official e-mail address of the DOLE as posted on its official website.

Only applications with complete requirements received by DOLE through any of the above modes of submission shall be deemed duly filed.

The DOLE shall acknowledge receipt of the applicant's application by:

Mode of Submission	Acknowledgment of Receipt of Application
Personal	By affixing the name and signature of the receiving officer, and date and time of receipt on the applicant's receiving copy.
Ordinary or registered mail	By notifying the applicant through electronic mail of the receipt of its application indicating the date and time thereof.
Courier service	
Electronic mail	By replying in the same thread of the applicant's electronic mail.

Section 3. Denial of Application for Accreditation. – The following are the grounds for denial of accreditation:

- a. Submission of falsified or tampered requirements, and/or incomplete requirements.
- b. Failure to observe and perform the terms of the accreditation based on the MOP.

Section 4. Content of the First Aid Certification Training Course. – All first aid training providers accredited by DOLE shall comply with the following minimum course content which details are in the MOP:

First Aid Training Courses	No. of Days	Minimum Training Course Content
Emergency First Aid Training	One (1)	Introduction to First Aid Emergency Action Principles Cardiac and Common Emergencies
Occupational First Aid and Basic Life Support Training	Two (2)	Introduction to First Aid Emergency Action Principles Cardiac and Common Emergencies Lifting and Moving of Patients
Standard First Aid and Basic Life Support Training	Four (4)	Introduction to First Aid Emergency Action Principles Cardiac, Airway, and Breathing Emergencies Medical and Environment Emergencies Bleeding and Shock Injuries Soft Tissue Injuries Poisoning Head and Spine Injuries Bone, Joints, and Muscle Injuries Special Situations Lifting and Moving of Patients

Section 5. Validity of FATPro Accreditation. – The Certificate of Accreditation to a FATPro shall be valid for three (3) years from the date of its issuance, subject to observation and performance of the responsibilities enumerated in Section 13.

Section 6. Responsibilities of Accredited First Aid Training Provider Issued with Certificate of Accreditation. – A first aid training provider issued with a Certificate of Accreditation shall:

- a. Complete at least one (1) set of first aid training listed below, within twelve (12) months reckoned from the issuance of its Certificate of Accreditation:
 1. Emergency First Aid Training
 2. Occupational First Aid and Basic Life Support Training
 3. Standard First Aid and Basic Life Support Training
- b. Maintain the accreditation requirements herein such as but not limited to the following or as stated in the MOP, as the case may be:
 1. Legal requirement to operate the business
 2. Training management and staff resources
 3. Premises including Occupational Safety and Health
 4. Policies on Intellectual Property and Data Protection
 5. Course delivery
 6. Quality Assurance and Enhancement
 7. Marketing and Recruitment of Trainees
- c. Implement the training according to the course description developed by the DOLE as stated in the MOP;
- d. Assist the visit/s of the Evaluation Team to conduct an ocular inspection and training observation. Proof of the conflicting activity shall be presented;

- e. Conduct their training in accordance or within the scope /coverage of their accreditation;
- f. Assess the skills and knowledge of individuals who have completed the EMS NC II or III program from a TVI but failed to take the assessment with the TVI for a reasonable fee;
- g. Comply with the provisions of the Occupational Safety and Health Standards and DO 198-18,
- h. Submit other documents as may be required or determined by DOLE; and
- i. Not transfer, assign or grant, in any manner, the use of its rights and/or obligations in whole or in part to another or third party.

Section 7. Renewal of the Certificate of Accreditation. – The application for renewal of Certificate of Accreditation shall be filed within sixty (60) calendar days before its expiration. In case of inaction within thirty (30) working days from the submission of complete requirements for renewal, the validity of the Certificate of Accreditation shall be deemed extended until resolution of the application.

However, no extension shall be deemed granted under the preceding paragraph if the application for renewal was filed less than thirty (30) working days before the expiration of its Certificate of Accreditation. It shall be suspended upon expiration, subject to automatic lifting upon the issuance of the new Certificate of Accreditation.

Section 8. List of First Aid Training Providers. – The DOLE shall post in its official website the profile of all accredited FATPros.

Section 9. Monitoring of Accredited FATPro – The DOLE shall conduct an annual audit within the validity of the Certificate of Accreditation to ensure compliance of the FATPro's responsibilities provided in this Rules.

It shall, upon observance of due process, suspend or cancel the accreditation, or permanently prohibit the application of a non-compliant or erring FATPro.

Section 10. Grounds for Suspension of Certificate of Accreditation. – The following are the grounds for suspension of Certificate of Accreditation:

- a. Failure to conduct one (1) training for each of the following every twelve (12) months, reckoned from the issuance of the FATPro's Certificate of Accreditation,:
 - 1. Emergency First Aid Training;
 - 2. Occupational First Aid and Basic Life Support Training; and
 - 3. Standard First Aid and Basic Life Support Training
- b. Refusal to allow the conduct of ocular inspection and training observation by DOLE;
- c. Late or non-submission of reports prescribed by the DOLE;
- d. Complaints related to FATPro's training conduct;
- e. The use of the government and other agencies' logos in their training slides without permission; and
- f. False advertisement and publicity in all forms of media.

Section 11. Grounds for Cancellation of Certificate of Accreditation or Permanent Prohibition from Applying for Accreditation. – The following are the grounds for cancellation of Certificate of Accreditation and permanent disqualification from applying for accreditation:

- a. Two (2) consecutive suspensions of accreditation regardless of the grounds thereof;
- b. Misrepresentation or concealment of relevant information in the application;
- c. Fraudulent activities by the person or company;
- d. Transfer, assignment or grant, in any manner, the use of its rights and/or obligations in whole or in part to another or third party; or
- e. Violation or aiding and abetting of the violation was intentional or associated with fraud.

Section 12. Preliminary Notice of Suspension or Cancellation of Certificate of Accreditation or Permanent Prohibition from Applying for Accreditation. – A Preliminary Notice for corrective action containing the following shall be served to the FATPro through its registered email:

- a. Statement of the audit observation of DOLE;
- b. Recommendation of the audit officer for the suspension or cancellation of the FATPro's Certificate of Accreditation or for the permanent prohibition of the FATPro from applying for accreditation;
- c. Corrective actions that may be undertaken by the FATPro;
- d. An instruction that the FATPro has a non-extendible fifteen (15) calendar days from receipt of the Preliminary Notice to submit the following to the DOLE:
 - 1. Reply rebutting the matters alleged in the audit observation if those have been corrected already or are false,
 - 2. Report chronologically the corrective actions undertaken (as applicable), and
 - 3. Supporting documents rebutting the allegations and/or compliance with the required corrective actions; and
- e. A statement that all matters alleged in the audit observation shall be deemed admitted in case the FATPro fails to submit a reply thereto.

The operation of any FATPro that has been served with Preliminary Notice of suspension or cancellation of Certificate of Accreditation or permanent prohibition from applying for accreditation shall be suspended until satisfactory compliance with the requirements for its accreditation.

Section 13. Final Notice of Suspension or Cancellation of Certificate of Accreditation or Permanent Prohibition from Applying for Accreditation. – Upon failure of the FATPro to comply with the Preliminary Notice within fifteen (15) calendar days from its receipt, the DOLE shall cancel the Certificate, after determination that it is:

- a. Unwilling or unable to correct the findings in the audit observation;
- b. Engaged in fraudulent activities to obtain or continue its accreditation with DOLE; or
- c. Found to be non-compliant for more than once on the same act.

The DOLE shall issue a Final Notice in writing of the suspension or cancellation of the Certificate of Accreditation or permanent prohibition from applying for accreditation of the FATPro through personal service, registered mail, or electronic mail.

The status of the FATPro and its Certificate of Accreditation shall immediately be updated in the official website of the DOLE.

Section 15. Appeal to the Secretary of DOLE. – The aggrieved FATPro may appeal the adverse resolution to the Office of the Secretary of DOLE within fifteen (15) calendar days from receipt of the resolution on its request for reconsideration. The resolution shall be deemed final and executory if no appeal is timely filed.

The decision of the Secretary shall be final and executory. The concerned FATPro shall be duly notified through personal service, registered mail, or electronic mail.

If the Appeal is granted, the validity of the Certificate of Accreditation shall be restored. The status of the FATPro and its Certificate of Accreditation shall immediately be updated in the official website of the DOLE.

Section 16. Certifications Issued by FATPro with Suspended or Cancelled Certificate of Accreditation. – Any certification issued by FATPro with suspended or cancelled Certificate of Accreditation shall not be recognized.

Section 17. Accreditation Fees. – The DOLE shall determine the applicable fees that shall be charged to the training providers applying for accreditation. Fees collected are non-refundable.

Applicable fees shall be posted in conspicuous areas of DOLE premises, official website, and IEC materials.

Rule IV Transitory and Final Provisions

Section 1. Repealing Clause. – All issued orders, rules and regulations, guidelines, and other policies or parts thereof which are contrary to or inconsistent with this Rules are hereby repealed, amended, or modified accordingly.

Section 2. Separability Clause. – In case any provision in this Rules shall be declared invalid, illegal, or unenforceable, the remaining valid provisions shall not be affected or impaired thereby.

Section 3. Effectivity. – This Rules shall take effect fifteen (15) calendar days after its complete publication in a newspaper of general circulation.

Manila, Philippines, 13 MAY, 2022.


SILVESTRE H. BELLO III
Secretary

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Office of the Secretary

